

EXHIBIT 2

Declaration

*First Amendment 11/17/2008*

1374 342

**THE SUMMIT AT CHEAT LAKE  
DECLARATION**

**THIS DECLARATION** is made and entered into this the 3<sup>rd</sup> day of October, 2008, by The Summit at Cheat Lake, LLC, a West Virginia limited liability company ("Declarant").

**WHEREAS**, Declarant owns and holds title to certain real property located and situate in Union District, Monongalia County, West Virginia, which Declarant intends to develop into a planned community; and

**WHEREAS**, Declarant intends to subject such property to the conditions, covenants, restrictions, exceptions, reservations, easements, rights of way, and limitations set forth and contained in this Declaration, each and all of which shall apply to, be binding upon, and inure to the benefit of Declarant, Unit Owners, the Association, their successors and assigns, and any and all other parties having an interest in such property.

**NOW, THEREFORE, WITNESSETH:** Declarant hereby declares that the Property is and shall be held, transferred, sold, granted, conveyed, leased and occupied subject to the conditions, covenants, restrictions, exceptions, reservations, easements, rights of way, and limitations set forth and contained in this Declaration.

**Article I****THE ACT**

- 1.01. Applicability of the Act: Declarant hereby subjects and submits the Property, as a planned community, to the terms and provisions of the Act.

**Article II****DEFINITIONS**

In this Declaration, and other related documents and instruments, unless specifically provided otherwise, or the context otherwise requires, the terms and words of art below shall mean as follows:

- 2.01. Act: The Uniform Common Interest Ownership Act, Chapter 36B of the West Virginia Code, as the same may be amended from time to time.
- 2.02. Architectural Review Committee (ARC): The committee which shall ensure quality development of the Property and maintain an attractive general character or scheme of development by approving or disapproving virtually all proposed improvements to the Units.
- 2.03. Articles: The articles of incorporation of the Association and any and all amendments and modifications thereof and supplements thereto.

- 2.04. Association: The Summit at Cheat Lake Property Owners' Association, Inc., a non-profit corporation, organized under the laws of the State of West Virginia, and any wholly-owned subsidiary thereof, its successors and assigns.
- 2.05. Board: The board of directors of the Association.
- 2.06. Bylaws: The bylaws of the Association and any and all amendments and modifications thereof and supplements thereto.
- 2.07. Clerk's Office: The Office of the Clerk of the County Commission of Monongalia County, West Virginia.
- 2.08. Common Elements: All areas on the Plat labeled "Common Areas", all streets, roads, easements, rights of way (including easements and rights of way over the Units, as shown on the Plat), rights, privileges, benefits, and interests appurtenant thereto, and improvements and permanent fixtures now or hereafter located and situated on the Property that are a benefit to the Units. The Units are excluded from Common Elements. Easements reserved over the Units are Common Elements. References to the Common Elements on the Plat are solely for general information purposes and shall not define, limit, or prescribe, in any manner, the Common Elements.
- 2.09. Common Expenses: Expenditures made by, or financial liabilities of, the Association, together with any allocations to reserves.
- 2.10. Common Expense Liabilities: The liability for Common Expenses allocated each year.
- 2.11. Community: The Planned Common Interest Community consisting of residential living units known as The Summit at Cheat Lake.
- 2.12. Declarant: The Summit at Cheat Lake, LLC, a West Virginia limited liability company, its successors and assigns, but excluding as successors and assigns, (a) all Purchasers of any Unit, and their successors and assigns, and (b) all persons having a lien or security interest in the Property, whether such lien or security interest is voluntary or involuntary, and their successors and assigns, but not excluding any such Person who succeeds to the interest of The Summit at Cheat Lake, LLC in and to the Property as a result of the foreclosure of such lien or security interest.
- 2.13. Declaration: This instrument, and any amendments or modifications hereof or supplements hereto, properly recorded in the Clerk's Office.
- 2.14. Development Rights: The rights reserved in Section 6.01.
- 2.15. Limited Common Elements: A portion of the Common Elements allocated by the Declaration or otherwise for the exclusive use of one or more but fewer than all of the Units.

- 2.16. Limited Common Expenses: Expenditures made by, or financial liabilities of, the Association relating to Limited Common Elements.
- 2.17. Limited Common Expense Liabilities: The liability for Limited Common Expenses associated to the Unit Owners benefitted by the related Limited Common Elements.
- 2.18. Member: Any and every Person holding membership in the Association in accordance with Section 4.01.
- 2.19. Person: An individual, corporation, business trust, estate, trust, partnership, limited partnership, association, joint venture, limited liability company, limited liability partnership, government, governmental subdivision or agency, or other legal entity.
- 2.20. Plat: That plat of survey of the Property prepared by Victor M. Dawson, P.S. No. 956 of Potesta & Associates, Inc. of West Virginia, dated October 6 2008, of record in the Clerk's office in Map Cabinet 5, File 49A, and incorporated herein by this reference, together with any amendments, modifications, or revisions thereof and supplements thereto.
- 2.21. Property: That certain real property referenced and described in Section 3.01, together with all streets, roads, easements, rights of way, rights, privileges, benefits, and interests appurtenant thereto, and improvements and permanent fixtures now or hereafter located and situated thereon.
- 2.22. Purchaser: A Person, other than Declarant or a dealer (as that term is defined in the Act), who by means of a voluntary transfer acquires a legal or equitable interest in a Unit other than (1) a leasehold interest or (2) as security for an obligation.
- 2.23. Restrictions and Protective Covenants: Those certain conditions, covenants, restrictions, exceptions, reservations, easements, rights of way, and limitations set forth and contained in this Declaration and imposed upon the Property.
- 2.24. Special Declarant Rights: Rights reserved for the benefit of Declarant to (1) complete improvements indicated on the Plat; (2) exercise any Development Right; (3) maintain sales offices, management offices, signs advertising the Property or Units, and models; (4) use easements and rights of way through the Common Elements for the purpose of making improvements within the Property, within real property which may be added to the Community, within real property that may be withdrawn from the Community, or within real property that may not be part of the Community; (5) make the Property subject to a master association; (6) merge or consolidate the Property with another common interest community of the same form of ownership or merge the Association with a master association; or (7) appoint or remove any officer, director, or committee member of the Association or any master association during any period of Declarant control.

- 2.25. Unit: A physical portion of the Property designated for separate ownership or occupancy. In addition, a Unit shall include, as an appurtenance thereto, a non-exclusive right of way and easement over and across the Common Elements for the purposes of ingress, egress and regress and for the installation of utilities in the locations shown on the Plats.
- 2.26. Unit Owner: Any and every record owner, whether Declarant or another Person, whether one or more Persons, of any undivided interest in any Unit, but excluding those Persons having (1) a leasehold interest in a Unit or (2) an interest in a Unit solely as security for an obligation.

### Article III

#### THE PROPERTY

- 3.01. Legal Description: The real property which is and shall be held, transferred, sold, granted, conveyed, leased, and occupied subject to the provisions of this Declaration is located and situate in Union District, Monongalia County, West Virginia, and shall be known and designated as The Summit at Cheat Lake. Such real property is more fully shown and delineated on the Plat. The Plat is hereby made an integral part of this Declaration for all pertinent purposes, including, without limitation, a legal description of such real property. Such real property is further described as follows:

All that certain tract or parcel of real estate, lying and being in Union District, Monongalia County, West Virginia, and more particularly described as follows:

A tract of land, situate on the waters of Cheat Lake, Union District, Monongalia County, West Virginia, more particularly described as follows:

Beginning at a ½ inch rebar found at the common division corner between Irene Kaufman Center (DB 712, PG 413), and The Summit at Cheat Lake LLC (DB 1309, PG 341), on the northern side of Emma Kaufman Road, County Route 65/2, thence running with said County Route 65/2

N 40°15'27" W, 165.36 feet to a ½ inch rebar found, thence

N 11°19'51" E, 746.12 feet to a 3/8 inch rebar found at the common division corner to James A. and Robert Walls and Roberta Martin (DB 106, PG 394), and Richard and Sally Groves (DB 1079, PG 64), thence leaving said Walls and Martin and running with said Groves

N 71°48'00" E, 1098.80 feet to a 3/8 inch rebar found on the east side of Old School Road, County Route 65/4, in the line of Morris S. Blosser (DB 868, PG 281) property, thence with said Blosser

S 19°18'26" E, 209.11 feet to a 3/8 inch rebar found, thence

S 11°28'01" E, 11.38 feet to a 5/8 inch rebar found, thence

S 36°46'18" W, 33.45 feet to a ½ inch rebar found at the common division corner with Donna Stone and Jerrold Henry (DB 1129, PG 179), thence running with said Stone and Henry

S 19°40'54" E, 494.18 feet to a ½ inch rebar found, thence

N 02°48'44" E, 417.46 feet to a ½ inch rebar, on the lines of the Blosser property, thence running with the lines of said Blosser Property

S 68°43'49" E, 731.08 feet to a ½ inch rebar found on the common division line between Morris S. Blosser (DB 868, PG 281) and Morris S. Blosser (DB 924, PG 557), thence with before mentioned second Blosser Property for seven calls

S 44°16'02" E, 50.65 feet to a ½ inch rebar found, thence

S 29°21'53" E, 99.27 feet to a ½ inch rebar found, thence

S 36°39'05" E, 102.94 feet to a ½ inch rebar found, thence

S 30°10'11" E, 110.73 feet to a ½ inch rebar found, thence

S 04°39'26" E, 93.29 feet to a roof bolt found, thence

S 32°19'56" E, 62.26 feet to 5/8 inch rebar and cap found, thence

S 57°57'05" E, 448.45 feet to 5/8 inch rebar and cap found at the common division line of Brian and Lois Sanetrik (DB 1050, PG 565), thence running with said Sanetrik property

S 24°00'57" W, 684.13 feet to 5/8 inch rebar and cap found, thence

S 77°29'41" E, 2,394.07 feet to ½ inch rebar found at the common division corner of Lake Lynn Land Company (DB 993, PG 171), thence running with said Lake Lynn property

S 34°19'12" W, 451.86 feet to a point on the 870 foot contour line of Cheat Lake at the common division corner with West Penn Power Company (DB 211, PG 201), thence with said West Penn Power Company and running along the 870 foot contour of Cheat Lake for seven calls

S 59°51'17" W, 336.00 feet to a point, thence

N 70°30'43" W, 85.00 feet to a point, thence

S 35°59'17" W, 114.00 feet to a point, thence

S 69°21'17" W, 496.00 feet to a point, thence

N 76°12'43" W, 197.00 feet to a point, thence

S 62°02'17" W, 208.00 feet to a point, thence

S 76°22'17" W, 646.11 feet to a point, thence leaving said 870 contour line and West Penn Power Company and running with said Irene Kaufman Center

N 33°57'49" W, 283.09 feet to a ¾ inch rebar found, thence

N 80°52'25" E, 354.76 feet to a 27 inch white oak in fence line, thence

N 14°19'35" W, 360.21 feet to a stone with "V" cut found, thence

N 87°16'15" W, 299.38 feet to 5/8 inch rebar and cap found, thence

N 74°34'35" W, 331.38 feet to fencepost, thence

N 72°03'59" W, 84.48 feet to a ½ inch rebar found, thence

N 43°34'08" W, 635.49 feet to a ½ inch rebar found, thence

N 38°01'08" W, 489.00 feet to a ½ inch rebar found, thence

N 37°25'31" E, 107.68 feet to a stone found, thence

N 43°56'31" W, 375.26 feet to a 5/8 inch rebar with cap set, thence

S 46°20'05" W, 273.87 feet to 5/8 inch rebar and cap set, thence

S 89°58'10" W, 520.95 feet to 5/8 inch rebar and cap set, thence

N 00°06'07" E, 403.71 feet to 5/8 inch rebar and cap set, thence

S 84°51'22" W, 277.28 feet to the point of beginning containing 133.66 acres more or less as shown on a plat of survey by Potesta and Associates, Inc. dated September 2008, entitled "PLAT OF SURVEY SHOWING SUMMIT AT CHEAT LAKE RESIDENTIAL DEVELOPMENT PREPARED FOR THE SUMMIT AT CHEAT LAKE, LLC", hereby made mention of and made part of this description.

Being the same real estate conveyed to The Summit at Cheat Lake, LLC, a West Virginia limited liability company, by Mountain Crest Properties, LLC, a West Virginia limited liability company, by deed dated December 1, 2005, of record in Deed Book 1309, at Page 341, and by Thomas Charles Sanetrik Sr. and Judith Ann Sanetrik, aka Judy Sanetrik, by deed dated September 18, 2006, of record in Deed Book 1326, at Page 272.

In addition, Declarant has contracted to purchase an adjacent parcel of land containing 5.97 acres more or less, more particularly described as follows:

Beginning at a 5/8 inch rebar set in the common division line between Irene Kaufman Center, recorded in Deed Book 712, at Page 413, and Summit at Cheat Lake, LLC, recorded in Deed Book 1309, at page 341. from which a ½ inch rebar found on the northern side of Emma Kaufman road, County Route 652 bears S 84° 51' 22" W at 277.28 feet, thence running with the lines of said Irene Kaufman Center N 84° 51' 22" E, 472.83 feet to a ½ inch rebar found, thence S 43° 56' 31" E 356.55 feet to a 5/8 inch rebar set, from which a stone found bears S 43° 56' 31" E at 375.26 feet, thence leaving said Summit at Cheat Lake, LLC, and running through and across the property of said Irene Kaufman Center from which this conveyance is part S 46° 20' 05" W, 273.87 feet to a 5/8 inch rebar set, thence S 89° 58' 10" W, 520.95 feet to a 5/8 inch rebar set, thence N 00° 06' 07" E, 403.71 feet to the point of beginning containing 5.97 acres more or less, as shown on a plat of survey by Potesta & Associates, Inc., dated July, 2008, said plat is hereby made mention of and made a part of this description.

In the event Declarant purchases such parcel, Declarant will amend this Declaration and add such property to the Community. It is the intention of the Declarant that the 5.97 acre tract is sufficiently described in this Declaration to satisfy the requirements of WV Code Section 36B-2-105(3) as to real estate to be included in the Community, in the event Declarant purchases said 5.97 acre tract.

- 3.02. Withdrawal: Declarant reserves the right to withdraw from the Community any portion of the Property that is not shown on a Plat as a dedicated phase of the Community.

#### Article IV

#### THE ASSOCIATION

- 4.01. Membership: Each and every Unit Owner shall be a Member of the Association, and shall be subject to the provisions of the Act, this Declaration, the Articles, the Bylaws, and the rules and regulations adopted or promulgated by the Association.
- 4.02. Powers of the Association: Subject to the provisions of the Act and this Declaration, the Association may:
- (1) Adopt and amend the Bylaws, rules, and regulations;
  - (2) Adopt and amend budgets for revenues, expenditures, and reserves, and levy, assess, and collect annual and special assessments for Common Expenses;
  - (3) Hire and discharge managing agents and other employees, agents, and independent contractors;



- (4) Institute, defend, or intervene in litigation or administrative proceedings in its own name or on behalf of itself or two more Unit Owners on matters affecting the Property;
- (5) Make contracts, incur liabilities, and borrow money;
- (6) Regulate the use, maintenance, repair, replacement, and modification of Common Elements;
- (7) Cause additional improvements to be made to or as part of the Common Elements;
- (8) Acquire, hold, encumber, and convey in its own name any right, title, or interest to real property or personal property; provided, that Common Elements may be conveyed or encumbered only in strict compliance with Section 4.09;
- (9) Grant and convey easements, rights-of-way, leases, licenses, and concessions on, over, under, across, or through the Common Elements;
- (10) Impose and receive any payments, fees, or charges for the use, rental, or operation of the Common Elements and for services provided to Unit Owners;
- (11) Cause property and liability insurance to be maintained or kept in effect;
- (12) Impose interest, costs, and legal fees for the late payment of assessments, charges, dues, fees, or fines;
- (13) Impose reasonable charges for the preparation and recordation of amendments to this Declaration, resale certificates, and statements of unpaid assessments, charges, dues, fees, or fines;
- (14) Provide for the indemnification of its officers, directors, and committee members;
- (15) Assign its right to future income, including the right to receive Common Expense assessments, but only to the extent provided for in this Declaration;
- (16) Employ and retain such professionals and other experts whose services and knowledge may be required to effectively perform and execute these powers;
- (17) Exercise any other powers conferred by this Declaration, the Articles, or the Bylaws;
- (18) Exercise all other powers that may be exercised in the State of West Virginia by legal entities of the same type as the Association;

- (19) Exercise any other powers necessary and proper for the governance and operation of the Association and the Community.

4.03. Board of Directors:

- (1) Except as otherwise provided in the Act, the Articles, the Bylaws, or subsection (2), the Board may act in all instances on behalf of the Association.
- (2) The Board may not act on behalf of the Association to amend this Declaration, to terminate the common interest community created and established by this Declaration, or to elect directors of the Board or determine the qualifications, powers and duties, or terms of office of directors, but the Board may fill vacancies on the Board in accordance with and pursuant to the Bylaws.
- (3) Within thirty (30) days after adoption of any proposed budget, the Board shall provide a summary of the budget to all the Unit Owners, and shall set a date for a meeting of the Unit Owners to consider ratification of the budget not less than fourteen (14) nor more than thirty (30) days after mailing of the summary. Unless at that meeting a majority of all Unit Owners reject the budget, the budget shall be deemed ratified, whether or not a quorum is present. In the event the proposed budget is rejected, the periodic budget last ratified by the Unit Owners shall be continued until such time as the Unit Owners ratify a subsequent budget proposed by the Board.
- (4) Subject to the provisions of subsection (5), there shall be an initial period of Declarant control of the Association, during which Declarant or Persons designated by it, may appoint and remove any and all officers, directors, and committee members. Such period of Declarant control shall terminate no later than the earlier of: (i) sixty (60) days after conveyance of seventy-five (75%) of the Units that may be conveyed to Unit Owners other than Declarant; (ii) two (2) years after Declarant has ceased to offer Units for sale in the ordinary course of business; or (iii) two (2) years after any right to add new Units was last exercised. Declarant may voluntarily surrender the right to appoint and remove officers, directors, and committee members before termination of such period, but in that event Declarant may require, for the duration of the period of Declarant control, that specified actions of the Association, board, or any committee, as described in a recorded instrument executed by Declarant, be approved by Declarant before the same become effective.
- (5) Not later than sixty (60) days after conveyance of twenty-five percent (25%) of the Units which may be conveyed to Unit Owners other than Declarant, at least two (2) directors and not less than twenty-five percent (25%) of the directors of the Board shall be elected by Unit Owners other than Declarant. Not later than sixty (60) days after conveyance of fifty percent (50%) of the Units which may be conveyed to Unit Owners other than Declarant, not less than thirty-three and one-

third percent (33 1/3%) of the directors of the Board shall be elected by Unit Owners other than Declarant.

- (6) Subject to the provisions of subsection (4) and Section 8.01, the Board shall elect all officers and appoint all committee members. Officers, directors, and committee members shall take office upon election or appointment.
- (7) Notwithstanding any other provision of this Declaration, the Articles, or the Bylaws to the contrary, the Unit Owners, by a two-thirds (2/3) vote of all Unit Owners present and entitled to vote at any meeting of the Unit Owners at which a quorum is present, may remove any director of the Board, any officer, or any member of any committee with or without cause, other than a director, officer, or committee member appointed by Declarant.

4.04. Bylaws: The Bylaws, and any and all amendments or modifications thereof or supplements thereto, shall provide:

- (1) The number of directors of the Board and the titles of the officers of the Association;
- (2) Election by the Board of a president, treasurer, secretary, and other officers of the Association;
- (3) The qualifications, powers and duties, terms of office, and manner of electing, appointing, and removing directors, officers, and committee members and filling vacancies;
- (4) Which, if any, of its powers or duties the Board or officers may delegate to other Persons or to a managing agent;
- (5) Which of its officers may prepare, execute, certify, and record amendments to this Declaration on behalf of the Association; and
- (6) A method for amending, modifying, or supplementing the Bylaws.

4.05. Upkeep: Except to the extent otherwise provided by the Act or this Declaration, the Association shall be responsible for the maintenance, repair, replacement, and upkeep of the Common Elements. No other Unit Owner and no other portion of the Property shall be subject to a claim for payment of such expenses.

4.06. Association Meetings: A meeting of the Association shall be held at least once each year. Special meetings of the Association may be called by (1) the president of the Association, (2) a majority of the Board, or (3) Unit Owners having at least twenty percent (20%) of the votes of the Association in accordance with and pursuant to the Bylaws. Not less than ten (10) nor more than sixty (60) days in advance of any meeting, the secretary shall cause notice to be hand-delivered or sent postage prepaid by United States mail to the

mailing address of each Unit or to any other mailing address designated in writing by a Unit Owner. The notice of any meeting must state the time and place of the meeting and the items on the agenda, including, without limitation, the general nature of any proposed amendment or modification of or supplement to this Declaration, the Articles, or the Bylaws, any budget changes, and any proposal to remove any director, officer, or committee member.

4.07. Quorums: The requirements for the presence of a quorum at (1) any meeting of the Association; (2) any meeting of the Board; and (3) any meeting of a committee, shall be in accordance with those requirements set forth and specified in the Bylaws.

4.08. Voting:

- (1) The allocation of votes within the Association shall be premised on the principle of "one vote for one Unit," notwithstanding that a single Unit may be owned by several Unit Owners.
- (2) In the event a Unit is owned by more than one Unit Owner: If only one of several Unit Owners of a Unit is present at a meeting of the Association, that Unit Owner shall be entitled to cast the vote allocated to that Unit. If more than one of the Unit Owners are present, the vote allocated to that Unit may be cast only in accordance with the agreement of a majority in interest of the Unit Owners. There shall be a majority agreement if any one of the Unit Owners casts the vote allocated to that Unit without protest being made promptly to the person presiding over the meeting by any of the other Unit Owners. In the absence of a majority agreement, each Unit Owner shall be entitled to cast a fractional vote attributable to the Unit, such fractional vote being based upon each such Unit Owner's fractional ownership of the Unit.
- (3) The vote allocated to a Unit may be cast pursuant to a proxy duly executed by a Unit Owner. In the event a Unit is owned by more than one Unit Owner, each Unit Owner may vote or register protest to the casting of votes by the other Unit Owners of the Unit through a duly executed proxy. A Unit Owner may revoke a proxy given pursuant to this subsection only by actual notice of revocation to the person presiding over a meeting of the Members. A proxy shall be void if it is not dated or purports to be revocable without notice. A proxy shall terminate one (1) year after its date of execution, unless it specifies a shorter term.
- (4) No vote allocated to a Unit owned by the Association shall be cast.
- (5) Only Members in good standing, as defined in the Bylaws, shall be entitled to vote.
- (6) For matters pertaining to the sewage treatment plant serving the Community, voting shall be further restricted as provided for in the Articles.

4.09. Conveyance or Encumbrance of Common Elements:

- (1) Portions of the Common Elements may be conveyed or subjected to a security interest by the Association only if Members entitled to cast at least eighty percent (80%) of the votes in the Association, including eighty percent (80%) of the votes allocated to Units not owned by Declarant, agree to such action.
- (2) An agreement to convey Common Elements, or to subject the same to a security interest, must be evidenced by the execution of an agreement, or ratifications thereof, in the same manner as a deed, by the requisite number of Unit Owners. The agreement must specify a date after which the agreement shall be void unless recorded before that date. The agreement and all ratifications thereof shall only be effective upon recordation in the Clerk's Office.
- (3) The Association, on behalf of the Unit Owners, may contract to convey or encumber an interest in the Common Elements pursuant to subsection (1), but the contract shall not be enforceable against the Association until approved pursuant to subsections (1) and (2). Thereafter, the Association shall have the powers necessary and appropriate to effect the conveyance or encumbrance, including the power to execute, acknowledge, and deliver deeds or other instruments.
- (4) Unless made pursuant to this section, any purported conveyance, encumbrance, judicial sale, or other voluntary transfer of Common Elements shall be void.
- (5) A conveyance or encumbrance of Common Elements pursuant to this section shall not deprive any Unit of its rights of access or support.
- (6) For matters pertaining to the sewage treatment plant serving the Community, voting shall be further restricted as provided for in the Articles.

4.10. Insurance:

- (1) Commencing not later than the time of the first conveyance of a Unit to a Person other than Declarant, the Association shall maintain, to the extent reasonably available:
  - (i) Blanket, all risk insurance on the Common Elements, insuring against all risks of direct physical loss commonly insured against. The total amount of insurance after application of any deductibles shall be not less than eighty percent (80%) of the actual cash value of the insured property at the time the insurance is purchased and at each renewal date, exclusive of land, excavations, foundations, and other items normally excluded from property policies; and

- (ii) Liability insurance, including medical payments insurance, in an amount determined by the Board covering all occurrences commonly insured against for death, bodily injury, and property damage arising out of or in connection with the use, ownership, or maintenance of the Common Elements.
- (2) If the insurance described in subsection (1) is not reasonably available, the Association shall promptly cause notice of such fact to be given to all Unit Owners. The Association may carry any other insurance it considers appropriate to protect the Association or the Unit Owners.
- (3) Insurance policies carried pursuant to subsection (1) shall provide that:
  - (i) Each Unit Owner is an insured person under the policy with respect to liability arising out of such Unit Owner's interest in the Common Elements or membership in the Association;
  - (ii) The insurer waives its right to subrogation under the policy against any Unit Owner or member of such Unit Owner's household;
  - (iii) No act or omission by any Unit Owner, unless acting within the scope of such Unit Owner's authority on behalf of the Association shall void the policy or be a condition to recovery under the policy; and
  - (iv) If, at any time of a loss under the policy there is other insurance in the name of a Unit Owner covering the same risk covered by the policy, the Association's policy provides primary insurance.
- (4) Any loss covered by the property policy under subsection (1)(i) shall be adjusted with the Association, but the insurance proceeds for that loss shall be payable to any insurance trustee designated for that purpose, or otherwise to the Association, and not to any holder of a security interest. The insurance trustee or the Association shall hold any insurance proceeds in trust for the Association, Unit Owners, and lienholders as their interests may appear. Subject to the provisions of subsection (7), the proceeds shall be disbursed first for the repair or restoration of the damaged property, and the Association, Unit Owners, and lienholders shall not be entitled to receive payment of any portion of the proceeds unless there is a surplus of proceeds after the property has been completely repaired or restored, or the common interest community created and established by this Declaration is terminated.
- (5) An insurance policy issued to the Association shall not prevent a Unit Owner from obtaining insurance for such Unit Owner's own benefit.
- (6) An insurer that has issued an insurance policy under this section shall issue certificates or memoranda of insurance to the Association and, upon written

request, to any Unit Owner or holder of a security interest. The insurer issuing the policy may not cancel or refuse to renew it until thirty (30) days after notice of the proposed cancellation or nonrenewal has been mailed to the Association, each Unit Owner, and each holder of a security interest to whom a certificate or memoranda of insurance has been issued at their respective last known addresses.

- (7) Any portion of the Property for which insurance is required under this section which is damaged or destroyed must be repaired or replaced promptly by the Association unless (i) the common interest community created and established by this Declaration is terminated; (ii) repair or replacement would be illegal under any state or local statute or ordinance governing health or safety; or (iii) eighty percent (80%) of the Unit Owners, including every Unit Owner of a Unit that will not be rebuilt, vote not to rebuild. The cost of repair or replacement in excess of insurance proceeds and reserves shall be a Common Expense. If the entire common interest community created and established by this Declaration is not repaired or replaced, (i) the insurance proceeds attributable to the damaged Common Elements shall be used to restore the damaged area to a condition compatible with the remainder of the common interest community created and established by this Declaration, and (ii) the remainder of the proceeds shall be distributed to the Unit Owners or lienholders, as their interests may appear in proportion to the Common Expense Liabilities of all the Units. If the Unit Owners vote not to rebuild any Unit, that Unit's allocated interests shall be automatically reallocated upon the vote as if the Unit had been condemned under the Act, and the Association shall promptly prepare, execute, and record an amendment to this Declaration reflecting such reallocation.
- 4.11. Surplus Funds: Any surplus funds of the Association remaining after payment of or provision for Common Expenses and prepayment of reserves shall be credited to Unit Owners to reduce their future Common Expense Liabilities, or, at the election of the Association used to establish a reasonable reserve for future expenses.
- 4.12. Association Records: The Association shall keep financial records sufficiently detailed to (1) enable the Association to comply with its duties and obligations under this Declaration and (2) permit the Association to provide, upon request and the receipt of a fifty dollar (\$50.00) fee peculiar to each Unit, a certificate setting forth that information which a Unit Owner is required to furnish a Purchaser pursuant to the Act in general, and West Virginia Code § 36B-4-109 in particular, or amendments or modifications thereof as successor statutes thereto.

## Article V

### ASSESSMENTS & LIENS

- 5.01. Initial Assessments: The initial Purchaser of any Unit in the Community shall, on the date of closing, pay to the Association the sum of Two Hundred Dollars (\$200.00). Such

sum shall be in addition to, and not included in, the agreed upon purchase price for the Unit. The purpose of the initial assessment will be to provide an initial reserve to satisfy Common Expenses. The initial Purchaser shall pay to Declarant a water tap fee of \$300.00 and a sewer tap fee of \$900.00. These fees shall be payable at closing and shall be for purposes of permitting the Unit Owner to tap into and obtain water and sewage services.

5.02. Assessment for Common Expenses:

- (1) Common Expense assessments shall be made at least annually, based on a budget adopted at least annually by the Association.
- (2) Except for assessments under subsections (3), (4), and (5), and subject to the provisions of Section 5.04, all Common Expenses shall be assessed against all the Units in accordance with the allocations set forth in Section 10.01. Any past due Common Expense assessment or installment thereof shall accrue interest at the rate of twelve percent (12.00%) per annum.
- (3) To the extent reasonably determinable, any Common Expense or portion thereof benefitting fewer than all of the Units shall be assessed exclusively against the Units benefitted (a Limited Common Expense).
- (4) Assessments to pay a judgment against the Association shall be made only against the Units in existence at the time the judgment was entered, and in proportion to their Common Expense Liabilities.
- (5) If any Common Expense is caused by the misconduct of any Unit Owner, or such Unit Owner's invitees, lessees, or licensees, the Association may assess such expense exclusively against such Unit Owner's Unit.
- (6) Subject to the provisions of Section 5.04, if Common Expense Liabilities are reallocated, Common Expense assessments and any installment thereof not yet due shall be reallocated in accordance with the reallocated Common Expense Liabilities.

5.03. Lien For Assessments:

- (1) Notwithstanding that all assessments, charges, dues, fines, and fees shall be personal obligations of Unit Owners against whom the same are imposed or who own a Unit at the time the same become due, the Association shall have a lien on a Unit for any assessments or charges levied against such Unit or dues, fines, or fees imposed against its Unit Owner from the time the same become due. Fees, charges, late charges, fines, and interest charged pursuant to Sections 4.02(10), 4.02(12), 4.02(13), 7.27, 8.02, 9.02, and 10.03, shall be enforceable as assessments under this section. If an assessment is payable in installments, the



full amount of the assessment shall be a lien against the Unit from the time the first installment thereof becomes due.

- (2) The Association, upon written request, shall furnish to a Unit Owner a statement setting forth the amount of unpaid assessments, charges, dues, fines, or fees against the Unit Owner's Unit or the Unit Owner. The statement shall be in recordable form. The statement shall be furnished within ten (10) business days after receipt of the request and shall be binding on the Association, the Board, and every Unit Owner.
- (3) For the purpose of perfecting and preserving its lien, the Association shall give notice to the Unit Owner by registered or certified mail, return receipt requested, and in a form reasonably calculated to inform the Unit Owner of his liability for payment of the assessments, charges, fines, or fees. The Association shall record a notice of the lien in the Clerk's Office. The notice shall contain:
  - (i) A legally sufficient description of the property;
  - (ii) The name(s) of the Unit Owner(s);
  - (iii) The amount of unpaid assessments, charges, dues, fines, and fees due, together with the date when each become due; and
  - (iv) The date of recordation.

The cost of recordation shall be assessed against any Unit Owner found to be delinquent.

- (4) Upon payment and full satisfaction of the assessment, charge, due, fine, or fee, the Association shall execute a written release of the lien. Such release shall be recorded at the expense of the Unit Owner in the Clerk's Office.

5.04. Limitation of Assessments: As Declarant has incurred substantial expense in developing the Community and as Declarant will be responsible for initial maintenance of the Community, Units owned by Declarant shall not be subject to any assessment whatsoever by the Association, provided Units owned by Declarant that are improved by homes and occupied shall be subject to assessment.

## Article VI

### DECLARANT'S RESERVED RIGHTS

6.01. Development Rights and Special Declarant Rights: Notwithstanding any other provision of this Declaration to the contrary, Declarant expressly reserves the right to exercise any and all Development Rights and Special Declarant Rights, including, without limitation, (1) the right to add real estate to the common interest community created and established by this Declaration, (2) the right to use and grant use of those easements and rights of

utilities servicing and benefitting the common interest community created and established by this Declaration in connection with the development of the property referenced in subsection (1) of this section, and increase the size and capacity thereof, and in connection with the development of the Property that is not part of the Community (5) the right to additionally burden easements and rights-of-way with traffic and use, (6) the right to create Units or Common Elements within the common interest community created and established by this Declaration, (7) the right to subdivide Units or convert Units into Common Elements, (8) the right to withdraw real estate from the common interest community created and established by this Declaration, (9) the right to convert Common Elements, or any portion thereof, into Units or add the same to Units, and (10) the right to create one (1) or more separate and independent subdivisions or common interest communities out of the Community or property added to the Community, and grant access and utility access to the same through the easements and rights-of-way within the common interest community created and established by this Declaration. Any and all Development Rights and Special Declarant Rights are and shall be perpetual in duration.

- 6.02. Multi-Family Dwellings: Notwithstanding any other provision of this Declaration, Declarant expressly reserves the right to construct, erect, or build, and may at any time construct, erect, or build multi-family dwellings in any phase of the Community provided such use is shown on the Plat utilized to dedicate the Phase to the Community. This right shall apply to each and every Unit owned by Declarant, whether now existing or hereafter created, whether initially owned by Declarant or conveyed to a Purchaser and re-acquired by Declarant.
- 6.03. Streets and Roads: Declarant expressly reserves the right to (1) extend all easements and rights-of-way for streets and roads within the Community into areas outside the Community and (2) dedicate the same to public use or grant the same to any municipality or other political subdivision of the State of West Virginia.
- 6.04. Easements: Declarant expressly reserves the right to permit or license others, particularly public and quasi-public utility corporations, their employees and contractors, to make use of those easements and rights of way set forth and described in Section 7.27. Declarant further expressly reserves the right to use and grant use of any and all easements and rights-of-way shown and illustrated on the Plat, excepted and reserved this Declaration, or created in this Declaration.

## Article VII

### RESTRICTIONS

- 7.01. Applicability: The Restrictions set forth and contained in this Declaration shall be applicable to the Property and each and every Unit or lot thereof or therefrom, whether now existing or hereafter created. The Restrictions, and the burdens and benefits associated therewith, shall be and are intended to be appurtenant to and covenants

running with the Property. The Restrictions shall apply to, be binding upon, and inure to the benefit of Declarant, Unit Owners, the Association, their successors and assigns, and any and all other parties having an interest in the Property.

- 7.02. Permitted Uses: Subject to the provisions of Section 6.02, Units shall be used solely and exclusively for residential purposes by either single families or no more than three (3) unrelated persons.
- 7.03. Number of Dwellings: Subject to the provisions of Section 6.02, no more than one (1) residential dwelling shall be constructed, erected, or built on any Unit.
- 7.04. Additional Structures: A Unit may be improved with one (1) residential home. Except for inground swimming pools and related bathhouses that must be located in the rear yard of a Unit in a location approved by ARC, no additional structures shall be permitted on a Unit.  
Notwithstanding the above, swimming pools are prohibited on Units 9-15 inclusive, Phase I of the Community.
- 7.05. Square Footage Requirements: All dwellings in Phase 1 of the Community shall contain at least two thousand (2,000) square feet of fully-finished above-grade living area, excluding basements, porches, patios, decks and garages, provided Units 9-20 inclusive of Phase 1 of the Community shall contain at least one thousand eight hundred (1,800) square feet of fully finished above grade living area. Future phases of the Community (excluding individual Units in multi family dwellings) shall contain at least One Thousand Five Hundred (1,500) square feet of fully finished above grade living area. Declarant reserves the right to increase the minimum square footage requirement for future Phases of the Community.
- 7.06. Subdivision: Each Unit shall be considered a single unit or lot and, subject to the provisions of Section 6.01, shall not be subdivided in any manner into tracts, parcels, or lots different from that description contained in the deed by which Declarant conveys its interest in such Unit or that shown on the Plat.
- 7.07. Two Units Used as One: Notwithstanding any other provision of this Declaration, upon the written consent of the Architectural Review Committee, a maximum of two (2) Units may be used as a single construction or building unit. In the event such consent is given and two (2) Units are used as a single construction or building unit, all allocated interests with respect to the Common Elements and Common Expenses shall be allocated on a single Unit basis; therefore, the Common Elements and Common Expenses allocated to the Units so combined shall be an appurtenance to such Units on an individual Unit basis. For instance, the use of Unit X and Unit Y as a single construction or building unit would result in the Unit Owner of Units X and Y being entitled to the benefits of and burdened by the obligations of only one Unit. Upon consolidation of two (2) Units as one (1), the new Unit may not be further subdivided.

- 7.08. ARC Approval: No building, structure, or improvements of any kind, including, but not limited to, fences and walls, shall be commenced, constructed, erected, built, placed, altered, or maintained on any Unit without the prior written approval of the ARC as provided for in Article VIII; provided, however, that the ARC shall have no jurisdiction over any buildings, structures, or improvements commenced, constructed, erected, built, placed, altered, or maintained by Declarant on or with respect to any Unit(s) owned by Declarant and the written approval of the ARC shall not be requisite with respect to Declarant commencing, constructing, erecting, building, placing, altering, or maintaining any buildings, structures, or improvements on or with respect to any Unit(s) owned by Declarant.
- 7.09. Set Back: No building, structure or improvement of any kind shall be constructed, erected, or built, or in any manner located nearer than:
- a) All setbacks from Ridge of Summit Drive are 35 feet;
  - b) 35 feet from all rear property lines;
  - c) 15 feet from each adjoining lot line for Lots 1-20;
  - d) 25 feet from each adjoining lot line for Lots 21-41;
  - e) 35 feet front setbacks from roadway right of way for Lots 1-8 and 21-41; and
  - f) 25 feet front setbacks for Lots 9-20.

The setback lines for each Unit are shown upon the Plat. In the event of a dispute as to whether a boundary line is a front, rear, or a side boundary line, the setbacks shown on the Plat shall be conclusive.

Declarant reserves the right to modify or eliminate the setback restrictions applicable to Units in future Phases.

- 7.10. Completion of Construction: After commencement of construction of any dwelling, a Unit Owner shall diligently prosecute the work thereon, to the end that such dwelling shall not remain in a partially completed condition any longer than reasonably necessary for completion thereof, and in no event any longer than twelve (12) months after commencement of construction of a dwelling provided for under Section 7.02 and (2) eighteen (18) months after the commencement of construction of a dwelling provided for under Section 6.02. No dwelling shall be used or occupied for residential purposes until the same is substantially completed.
- 7.11. Maintenance During Construction: During construction of any building, structure, or improvement, it shall be the responsibility of each Unit Owner to insure that construction sites and Units are kept free of unsightly accumulations of rubbish and scrap materials, and that construction materials, and the like are kept in a neat and orderly manner.
- 7.12. Excavation: No excavations shall be made on any Unit except in connection with construction of a building, structure, or improvement, and upon completion thereof, exposed openings shall be backfilled and disturbed ground shall be graded and leveled.

- 7.13. Erosion: All Units, whenever construction or building occurs thereon, shall be affirmatively and aggressively stabilized and otherwise protected and maintained against erosion. Declarant shall not be responsible for any soil movement. It will be the responsibility of all unit owners to inspect any/all soil conditions prior to the purchase of a Unit at the expense of the Unit Owner. All excavation and final landscaping shall be completed in the construction time periods for inspection.
- 7.14. Driveways: Except for Units 1-8 inclusive, Phase I, no driveways may connect to Ridge of Summit Drive. All driveways shall be constructed of, and poured with, concrete, asphalt, or approved stone or brick pavers, and completed no later than twelve (12) months after the commencement of construction of any dwelling.
- 7.15. Ditching; Conduit: Prior to the construction and pouring of any driveway or walkway, each Unit Owner shall bury a four inch (4") Schedule 40 P.V.C. conduit, capped at each end, under that portion of the driveway or walkway which is located within the fifteen (15) foot easement area described in Section 7.26(2).
- 7.16. Trade or Business Limitations: No Unit shall be used for anything other than residential purposes except that a home based business may be established upon the following restrictions:
- a. The owner of the Unit must be the owner and operator of the home based business. The home based business must be a secondary use which is clearly incidental and subordinate to the residential use of the dwelling.
  - b. The home occupation shall be:
    - i. compatible with residential uses and character of the dwelling.
    - ii. compatible with residential uses and character of the neighborhood.
    - iii. shall occupy less than twenty five percent (25%) of the finished living space, as defined in Section 7.05 herein.
  - c. The home occupation shall not:
    - i. require internal or external alterations or construction features not customary to a residential dwelling.
    - ii. result in substantial increases in traffic, congestion, or parking burdens on the neighborhood.
    - iii. produce detectable fumes, odors, dust, heat, noise, vibration, glare electro-magnetic fields, electrical interference, or other affects.
    - iv. require fixed installation of equipment or machinery.
  - d. No storage or display of goods, materials, or products connected with a home occupation shall be allowed outside the dwelling.

- e. Employment of persons not residing in the dwelling unit shall be restricted to one employee residing outside the dwelling unit, working no more than four hours per day. Any other employees shall be persons residing in the dwelling.
  - f. Retail sales shall not occur in the Unit.
  - g. There shall be no signs advertising any home-based business.
  - h. If stock-in-trade is to be displayed on premises, said stock-in-trade is to be displayed in a fashion so as not to be seen from the outside of the dwelling.
  - i. Given the above referenced restrictions, any and all home based businesses must be approved in writing by a majority vote of the Architectural Review Committee. The ARC may grant variances on any and all of the above restrictions, given a majority vote; provided said variances do not adversely affect the character and integrity of the dwelling or the subdivision. In no event shall signs be allowed.
- 7.17. Utilities: All utility services and connections to all buildings, structures, and improvements shall be made underground.
- 7.18. Insurance:
- (1) Each Unit, and the improvements thereon, shall be insured against the risk of loss due to fire, casualty, or any other disaster in an amount equal to at least ninety percent (90%) of the purchase price of the Unit and cost of improvements.
  - (2) In the event of fire, casualty, or any other disaster that destroys or damages a Unit or the improvements thereon, such Unit's Unit Owner shall, at the minimum, apply all insurance proceeds to the extent necessary to return the Unit to grade. In the event such Unit Owner chooses to reconstruct or repair the Unit or the improvements thereon, such reconstruction or repair shall fall within the scope of Section 7.08 and Section 6.05.
- 7.19. Vehicles: No unlicensed vehicles, junk vehicles, vehicles exceeding two (2) tons gross vehicular weight, trailers, campers or recreational vehicles shall be parked or stored on any Unit unless parked or stored in an enclosed garage. Declarant or the Association shall have the right to remove any vehicles in violation of this provision from the Property, at the owner's expense. No repairs shall be made to any vehicle on any Unit except those of a minor nature performed within an enclosed garage. No vehicles shall be parked within the easement or right-of-way of any street or road, except on an occasional basis.

- 7.20. Trash Receptacles: All trash, garbage, rubbish, and other waste shall be kept in containers maintained in a neat, clean, and sanitary condition. Such containers shall be kept and maintained in such a manner so as not to be visible to public view; however, trash and other refuse that is disposed of by being picked up and carried away on a regular and recurring basis, may be placed within public view in an appropriate container on any day that pick-up is to be made, at such place so as to provide access to those persons making such pick-up.
- 7.21. Other Prohibited Uses: The following uses of the Property, and each and every Unit or lot thereof or therefrom, are not permitted and shall be prohibited:
- (1) Any use which involves setting, placing, erecting, or parking a mobile home, house trailer, "double-wide," or the like, whether for the purpose of use as a dwelling or not.
  - (2) Any use which involves the setting, placing, erecting, or maintaining of an above-ground pool.
  - (3) Any use which involves the raising, breeding, keeping, or maintaining of any animals or poultry, except that this subsection shall not prohibit the keeping and maintaining of dogs, cats, and other similar domestic animals, provided that such domestic animals are not kept or maintained for commercial or breeding purposes. Such domestic animals shall not be kept or maintained outside of any dwelling. All dogs, when outside of a home shall be restrained by a leash or through invisible fencing located on the Unit.
  - (4) Any use which involves a noxious odor or excessive noise level, or in any manner creates or causes a nuisance.
  - (5) Any use which involves the placing, erecting, or maintaining of any signs, billboards, or advertisements of any kind, except those pertaining to or concerning the sale or rental of a Unit. Such sale or rental signs shall not exceed four (4) square feet in size. No such sale or rental signs shall be placed, erected, or maintained at or near the entrance of the Property. This section shall not apply in any way to Declarant or be construed or interpreted to prohibit Declarant from placing, erecting, or maintaining signs, billboards, or advertisements of any kind or size.
  - (6) Any use involving an antenna, tower, or satellite dish, except satellite dishes not exceeding eighteen inches (18") in diameter.
  - (7) Any use involving clothes lines, clothes poles, and the like, unless the same are placed or screened so as not to be visible from any surrounding Unit or property.
  - (8) Any use involving tents, shacks, trailers, boats, sheds, or the like for residential purposes, whether of a permanent or temporary tenure. Except, the ARC may

grant a variance for the temporary use of a tent designated for a special event. However, in no circumstance shall such a variance be granted for a period of time exceeding 48 hours.

- (9) Any use which involves dumping trash, garbage, rubbish, junk, waste, or any other material.
  - (10) Any use which involves the use of fuel tanks or storage tanks.
  - (11) The use of wood-burning fireplaces shall be permitted, however, all wood used for such purpose shall be kept and maintained in such a manner so as not to be visible to public view.
- 7.22. Sewage: All plumbing fixtures, dishwashers, or toilets shall be connected to the sewage system. Storm water shall not be connected to the sewage system.
- 7.23. Exterior: The exterior walls of all buildings, including all foundation and masonry walls, shall be of brick, stone, stucco, natural wood, cement board siding such as "hardi-plank" brand or other material similar in aesthetic appearance. No building shall have concrete or cinder blocks or concrete masonry exposed in any manner. All roofs shall be asphalt or slate shingles, or composite material of similar characteristics and aesthetic appearance. Metal roofs are prohibited. Exterior colors shall be natural earth tones, approved by ARC. At least twenty five percent (25%) of the exterior area of all homes facing a street of the Community shall be stone or brick.
- 7.24. Roof Pitch: Flat or nearly flat roofs are prohibited. Roofs must have a minimum pitch of one foot rise per four feet of run.
- 7.25. Fences: Except for fences and surrounding below ground swimming pools, the design of which must be approved by ARC and fences surrounding sediment ponds, no other fences shall be permitted. Privacy fences which block the view of the general public shall be prohibited.
- 7.26. Easements:
- (1) Each Unit shall be subject to and burdened by those easements and rights-of-way shown and delineated on the Plat.
  - (2) Each Unit shall be subject to a right of way and easement, fifteen feet (15) in width, along the entire boundary of each Unit, for purposes of the installation, maintenance, repair, replacement of underground utilities and related utility systems, and open ditch drainage.
  - (3) Each Unit shall be subject to a right of way and easement, fifteen feet (15) in width, along the entire boundary of a Unit that adjoins a street for purposes of



pedestrian access upon the sidewalks referenced in Paragraph 7.28 of this Declaration.

- (4) The Community is subject to the rights of the West Virginia Department of Environmental Protection to maintain the acid mine water drainage treatment facilities located adjacent to the Community as shown on the Plat and to maintain the drainage lines and open ditches to the facilities which lines and ditches are currently located in the area shown on the Plat. The rear portion of Units 16-19 inclusive.
- (5) All easements and rights-of-way burdening a Unit shall be continuously maintained by each Unit Owner in accordance with the provisions of Section 9.01. No building, structure, or improvement of any kind shall be constructed, erected, or built, or in any manner located, in, on, over, or above such easements and rights-of-way and the same shall at all times be open and accessible to Declarant, the Association, and public and quasi-public utility corporations, their employees and contractors, all of whom shall have the right and privilege of doing whatever may be necessary in, on, under, and above such easements and rights-of-way to carry out the purposes for which the same have been created, excepted, and reserved.
- (6) Each and every easement and right of way shown and illustrated on the Plat is hereby excepted and reserved for the benefit of Declarant and its successors and assigns and each and every easement and right of way labeled or designated as a "utility" easement or right of way on the Plat shall be for the purposes of installing, constructing, laying, extending, maintaining, operating, inspecting, repairing, removing, and replacing lines, conduits, pipes, wires, drain ways, mains, manholes, and any and all connections, attachments, additions, appurtenances, and instrumentalities thereto, necessary, appropriate, useful, convenient, or incidental to carrying, transmitting, and transporting utilities and utility services.
- (7) Every Unit Owner, his invitees, lessees, and licensees, shall have a right and easement of enjoyment in and to the Common Elements which shall be appurtenant to and shall pass with the title to the Property and each and every Unit or lot thereof or therefrom, subject to the following:
  - (i) The right of the Association to take such steps as are reasonably necessary to protect the Common Elements against foreclosure;
  - (ii) All provisions of this Declaration, the Articles, the Bylaws, and the Plat; and
  - (iii) Rules and regulations adopted or promulgated by the Association.

- 7.27. Speed Limits: Speed limits for streets and roads within the Property shall be adopted or promulgated by the Association. Such speed limits shall be posted within the Property and shall be enforceable against Unit Owners and Unit occupants by way of fines. The Association shall have the authority and power to assess fines for violation of such speed limits. Such fines shall be charged to and assessed against the Unit of such violating Unit Owner or Unit occupant and shall be enforceable as an assessment under Section 5.03.
- 7.28. Sidewalks: All Unit owners must construct, and maintain a concrete sidewalk, forty-eight (48) inches wide by four (4) inches deep, along all property lines adjoining a street of the Community. The location of the sidewalk shall be approved by the ARC. The sidewalks will be located within the setback area for each Unit. The sidewalk shall be subject to the easement described in Section 7.26(3) of this Declaration. Unit Owners shall be responsible for the maintenance of the sidewalk, including the removal of snow and ice.
- 7.29. Unlicensed Vehicles: Street legal licensed motorcycles and electric powered golf cars shall be permitted on the streets of the Community, provided they are operated by a person with a valid drivers West Virginia drivers license. All other forms of ATV's, motorcycles or similar gasoline powered vehicles shall not be used in the Community.

## Article VIII

### ARCHITECTURAL REVIEW COMMITTEE

- 8.01. Committee Members: The ARC shall be composed of three (3) members who shall be appointed by the Board. A committee member shall serve on the ARC until (1) he/she resigns from the ARC; (2) subject to Section 4.03(7), he/she is removed by the Board; or (3) he/she is removed by Declarant pursuant to Section 4.03(4). Any vacancies on the ARC may be filled through appointment by the Board.
- 8.02. Function of ARC: Subject to the provisions of Section 7.08 and Section 8.03, no building, structure, or improvement of any kind shall be commenced, constructed, erected, built, placed, altered, or maintained on any Unit until plans and specifications, in such form and detail as the ARC may deem necessary, shall have been submitted to and approved in writing by the ARC. ARC shall have the power and authority to retain and employ professional advisors as may be necessary in the exercise of its powers. ARC shall have the power and authority to restrict construction times, the delivery of construction materials, and may impose weight limits on vehicles delivering construction materials. ARC may also levy reasonable fines against Unit Owners for violations of such restrictions.
- 8.03. Declarant Exception: In keeping with the provisions of Section 7.08, the provisions of this article shall not apply to any improvements which Declarant elects to construct, erect, or build on any Unit.

8.04. Improvement Absent Approval: In the event any building, structure, or improvement is commenced, constructed, erected, built, placed, altered, or maintained on any Unit without prior approval of the ARC, then the Unit Owner shall, upon demand by the Association, cause such Unit, building, structure, or improvement to be restored to comply with the plans and specifications originally approved by the ARC and shall bear all costs and expenses of such restoration, including, but not limited to, the costs and reasonable attorney's fees of the ARC.

8.05. Plans and Specifications: The plans and specifications to be submitted pursuant to Section

8.02 shall include the following:

- (1) Plot layout showing the location of the residence and related improvements;
- (2) Exterior elevations;
- (3) Square footage of any dwelling;
- (4) Exterior materials, colors, textures, and shapes;
- (5) Structural design;
- (6) Landscaping plan, including sidewalks, walkways, walls, elevation changes, watering systems, vegetation, and ground cover;
- (7) Parking area and driveway plans;
- (8) Screening, including size, location, method, and purpose;
- (9) Utility connections;
- (10) Stormwater drainage plan;
- (11) Exterior illumination, including location and method;
- (12) The name of the general contractor, along with such information including financial information necessary to evaluate the reliability of the contractor; and
- (13) The time period to complete construction.

The ARC shall have the right as a condition of approval of the Plans and Specifications to require the Owner or the general contractor to post a performance bond. The initial performance bond shall be \$6,500.00 cash. The bond is payable upon submission of the Plans and Specifications of a Unit. The bond will be held by the Association in non-interest bearing form. Upon completion of construction in full

compliance with the Plans and Specifications and approval thereof by ARC, the performance bond will be released to the Unit Owner.

In the event the Unit Owner: (i) fails to complete construction pursuant to the Plans and Specifications; or (ii) fails to complete construction during the construction period disclosed in the Plans and Specifications; or (iii) damages the Common Elements or other Units during construction, the Association in addition to other remedies it may have, may utilize all or a portion of the performance bond to correct said damages. The Association, in its sole discretion shall have the right to increase or decrease the amount of the bond on a Unit by Unit basis.

8.06. Approval:

- (1) The ARC shall, in writing, approve or disapprove, by a majority vote, all plans and specifications submitted within forty-five (45) days of the submission thereof.
- (2) Approval shall be based, among other things, on (i) adequacy of site dimensions; (ii) structural design; (iii) conformity and harmony of external design and of location with neighboring buildings, structures, and improvements; (iv) relation of finished grades and elevations to neighboring Units; (v) conformity to both the general and specific intent of the provisions of the Declaration; (vi) conformity with the general character of scheme of the Property; and (vii) the experience and skill of the proposed general contractor. Purely aesthetic considerations shall be a valid factor with respect to approval of plans and specifications and may be the sole and determinative factor for disapproval. ARC reserves the right to condition approval upon the purchaser or the general contractor posting a performance bond insuring that construction will be completed in compliance with the submitted plans and specifications.
- (3) In the event plans and specifications are not sufficiently complete or are otherwise inadequate, the ARC may reject them as being inadequate or may approve or disapprove part, conditionally or unconditionally, and reject the balance.
- (4) The ARC shall not arbitrarily or unreasonably withhold its approval.
- (5) All decisions of the ARC may be appealed to the Board for review. Any decision of the ARC not appealed within thirty (30) days following such decision shall be final, conclusive, and binding upon the submitting Unit Owner. All decisions of the Board shall be final, conclusive, and binding upon the submitting Unit Owner.

8.07. Mailboxes: The ARC shall select a uniform decorative mailbox to be used with respect to all Units within the common interest commonly erected and established by this Declaration. The ARC shall have the power and authority to remove any and all mailboxes that do not comply with the uniform decorative mailbox chosen.

8.08. Variances:

- (1) The ARC may authorize and grant reasonable variance from the provisions of a Restriction where (i) such variance shall not be contrary to the interests of the Association, Unit Owners, or the common interest community created and established by this Declaration, (ii) such variance shall not result in any non-conformity with both the general and specific intent of the provisions of the Declaration, (iii) such variance shall not result in any non-conformity with the general character and scheme of the common interest community created and established by this Declaration, and (iv) the terms or application of such Restriction results in unnecessary hardship.
- (2) In the event the ARC authorizes and grants a Unit Owner variance from the provisions of Sections 7.10 or 7.23(1), such variance shall in no way impair, invalidate, or waive those easements and rights-of-way set forth and described in Section 7.23(1). In the event any improvement is constructed, erected, built, or maintained over, above, or on such easements and rights-of-ways, the Unit Owner shall bear the risk and cost of removing such improvement in the event Declarant or the Association must enter the same for any purpose. Neither Declarant nor the Association shall have any duty to repair or replace such improvement or otherwise compensate such Unit Owner for any damage incurred by any part of such improvement.
- (3) At the time a Unit Owner seeks variance from the provisions of Sections 7.10 or 7.23(1), such Unit Owner shall, in addition to satisfying the other requirements of this article with respect to the commencement, construction, erection, building, placement, alteration, or maintenance of any improvement on any Unit, execute a waiver releasing any and all claims, rights, and causes of action which the Unit Owner may have for any and all damages that might arise with respect to improvements constructed, erected, built, or maintained over, above, or on such easements and rights-of-ways. Such waiver shall release both Declarant and the Association from all liability and responsibility relative to such claims, rights, and causes of action.

## Article IX

### MAINTENANCE

9.01. Maintenance Duties and Responsibilities: Unit Owners and Unit occupants shall have the duty and responsibility, at their sole cost and expense, to keep their Units and the improvements thereon and the grounds in connection therewith in a well maintained, safe, clean, and attractive condition at all times. Such maintenance shall include, but not be limited to, the following:

- (1) Removing promptly all litter, trash, refuse, and wastes;
- (2) If the Unit is improved, lawns shall be kept below five (5) inches in height;

- (3) If the Unit is unimproved, weeds and the like shall be kept below twelve (12) inches in height;
- (4) Pruning trees and shrubbery;
- (5) Keeping exterior lighting in operable condition;
- (6) Keeping lawns and landscaped areas alive, free of weeds, and attractive;
- (7) Keeping parking areas, driveways, and walkways in good repair;
- (8) Watering and fertilizing lawns;
- (9) Complying with all governmental, health, police, and fire requirements, statutes, regulations, and ordinances;
- (10) During construction of any building, structure, or improvement, keeping construction sites and Units free of unsightly accumulations of rubbish and scrap materials, and keeping construction materials and the like in a neat and orderly manner; and
- (11) Keeping any ditches located in an easement area open and unobstructed so that the drainage of storm water is not interfered with.

9.02. Maintenance Enforcement: If in the opinion of (1) Declarant prior to termination of Declarant control or (2) the Association at any time, any Unit Owner or Unit occupant shall have failed with respect to any of the duties and responsibilities enumerated in Section 9.01, then Declarant and/or the Association may give such Unit Owner or Unit occupant written notice of such failure and such Unit Owner or Unit occupant must within ten (10) days after receiving such notice, perform the care and maintenance required. In the event such Unit Owner or Unit occupant fails to fulfill and satisfy such duty or responsibility within such period, then Declarant and/or the Association, through its authorized agents, shall have the right and power to enter onto the premises and perform such care and maintenance without any liability for damages for wrongful entry, trespass, or otherwise to any Person. Such right shall not be exercised by the Association in the absence of the unanimous consent of the Board. The Unit Owners or Unit occupants whose Unit was the subject of such performed care and maintenance shall be jointly and severally liable for the cost of such care and maintenance and shall promptly reimburse Declarant and/or the Association for such cost. In the event such cost shall not have been reimbursed within thirty (30) days after a statement for such cost shall have been given to such Unit Owner or Unit occupant, then such cost shall be charged to and assessed against the Unit of such Unit Owner or Unit occupant and shall be enforceable as an assessment under Section 5.03.

## Article X

### MISCELLANEOUS

#### 10.01. Allocated Interests:

- (1) Each Unit shall be allocated an undivided fractional interest in the Common Expenses of the Association. For purposes of calculating common expense liability, the number of Units in Phase I of the CIC is 47. The actual final number of Units in the CIC has not yet been determined. The maximum number of Units that may be created within the CIC is 99. Therefore, the following formula shall be used to determine the respective allocated interest of each Unit within the common interest community created and established by this Declaration. An allocated interest for each Unit shall be equal to a fraction where the numerator shall be one (1) and the denominator shall be the number of Units sold by Declarant to a person, not to exceed (maximum number of units).
- (2) Declarant, pursuant to Section 6.01, has reserved the right to add Units to and withdraw Units from the Property. Therefore, in the event Declarant elects to exercise such rights and add Units to or withdraw Units from the Property, the allocated interest with respect to each Unit may vary. In such an event, the formula set forth in subsection (1) shall be used to reallocate interest among the Units following the execution of such rights and the amendment, modification, or revision of the Plat.

#### 10.02 Lake Access:

- (1) Community Lake Access: Declarant intends to create a Community access area to Cheat Lake, the approximate location for which is shown on the Plat, as "Common Element G" (the "Community Lake Access Area"). The Community Lake Access Area is a Common Element. The expense associated with maintaining the Community Lake Access Area shall be a Common Expense. Boat access to Cheat Lake shall be prohibited at the Community Lake Access Area.
- (2) Boat Docks: Adjacent to the Community Lake Access Area, Declarant intends to develop boat docks for Owners of Units in Phase 1 of the Community only. Access to the boat docks shall be limited to Phase 1 Unit Owners acquiring boat dock slips from Declarant. The boat docks shall be Limited Common Elements benefiting only Phase I Unit Owners purchasing boat dock slips. The expense of maintaining the boat docks shall be a Limited Common Expense. Upon acquisition of a boat dock slip from Declarant, the slip is freely transferable to another Unit Owner of Phase 1 of the Community, provided, a boat dock slip may be owned by one Unit Owner only. Fractional ownership shall not be permitted. Right to use of the boat docks may be suspended for failure to pay Limited

Common Expenses allocated to the Unit Owner owning the boat dock slip. The boat dock slip may not be transferred to any Person that is not a Phase 1 Unit Owner. Unit Owners of subsequent Phases of the Community shall not be entitled to acquire boat dock slips.

- (3) Private Boat Docks: The Owners of Phase 1, Units 1-8 inclusive of the Community may contact Allegheny Energy Supply Company, LLC ("Allegheny") and apply for a license to construct and operate a private boat dock appurtenant to each Unit. Such private dock may be utilized by the Owners of the appurtenant Unit and may not be leased, sold or expanded for the use by other Persons. Use is subject to approval of Allegheny.
- (4) License for Community Lake Access and Boat Docks: Use of the Community Lake Access and Boat Docks is subject to the terms and conditions of a revocable License Agreement from Allegheny to Declarant. In the event said license agreement is revoked or terminated or not renewed by Allegheny, the rights to use of the Community Lake Access Area and the Boat Docks may be terminated.

#### 10.03. Warranties of Quality:

- (1) Declarant makes no express or implied warranties of quality. It is understood and agreed that by purchasing a Unit, any and all Purchasers accept and acknowledge that all express and implied warranties of quality are excluded. Units are being offered for sale by Declarant upon an "AS IS" basis.
- (2) All Purchasers, prior to becoming a Unit Owner, shall execute a separate instrument which, as between Declarant and Purchaser, shall, among other things, (i) waive and release Purchaser's statutory right to commence a judicial proceeding against Declarant for breach of express and implied warranties of quality within six (6) years after such a cause of action accrues; (ii) release Declarant from such six (6) year limitation period; and (iii) impose upon and make Purchaser subject to a reduced period of limitation of two (2) years from the accrual of such a cause of action.

10.04. Enforcement: The provisions of this Declaration, the Articles, the Bylaws, and the rules and regulations adopted or promulgated by the Association shall be enforceable by and entitle each and every Person upon whom this Declaration shall be binding, including the Association, in addition to all other remedies, to the right to proceed at law or in equity to compel compliance with or prevent the violation or breach of any of the provisions of this Declaration, the Articles, the Bylaws, or the rules and regulations adopted or promulgated by the Association. In the event the exercise of such rights results in any actions or proceedings, the expense of such actions or proceedings shall be borne by the then Unit Owner of the Unit with respect to which such violation exists; provided, that such action or proceeding results in a finding that such Unit Owner, or such Unit Owner's invitee, lessee, or licensee was in violation of this Declaration, the Articles, the Bylaws, or the



rules and regulations adopted or promulgated by the Association. Such expense shall include, but not be limited to, reasonable attorney fees, expert fees, court costs, and the like. Such expense shall be charged to and assessed against the Unit of such Unit Owner and shall be enforceable as an assessment under Section 5.03.

10.05. Amendment:

- (1) In the event Declarant exercises any Development Right, Special Declarant Right, or any other right reserved to the benefit of Declarant in this Declaration, Declarant shall have the right to unilaterally amend, modify, or supplement this Declaration and amend, modify, or revise the Plat in connection with and with respect to the exercise of the same, including, without limitation, the right to unilaterally amend or modify this Declaration so as to redefine the defined terms "Property" and/or "Plat" in the event Declarant adds or withdraws real property to the common interest community created and established by this Declaration.
- (2) Except as otherwise provided in the Act and subsection (1), this Declaration may be amended, modified, or supplemented only by vote or agreement of Unit Owners owning Units to which not less than seventy percent (70%) of the votes in the Association are allocated.
- (3) Every amendment or modification of or supplement to this Declaration shall only be effective upon recordation in the Clerk's Office.
- (4) Except to the extent expressly permitted or required by the provisions of the Act, but except as otherwise provided in subsection (1), no amendment, modification, or supplement may create or increase Special Declarant Rights, increase the maximum number of Units, change the boundaries of any Unit, change the allocated interests of a Unit, or change the uses to which any Unit is restricted, in the absence of unanimous consent of (i) all Unit Owners and (ii) all Persons who hold security interests encumbering the Units. Any instrument memorializing or setting forth such an amendment or modification shall be executed and acknowledged by (i) all Unit Owners and (ii) all such secured parties.
- (5) Except as provided in subsection (1) and subsection (4), amendments, modifications, or supplements required to be recorded by this Article shall be prepared, executed, acknowledged, and properly recorded on behalf of the Association by its president.

10.06. Predominance of Declaration: In the event of a conflict between the provisions of this Declaration and the Articles or the Bylaws, this Declaration shall prevail and dominate except to the extent this Declaration is inconsistent with the Act.

10.07. Binding Effect: This Declaration shall be binding upon and inure to the benefit of Declarant, the Association, and each and every Unit Owner, and their respective heirs, devisees, executors, administrators, legatees, legal representatives, successors, assigns,

- and creditors, and any and all other Persons having, at any time, an interest in the Property.
- 10.08. Separate Titles and Taxation: After conveyance by Declarant, each Unit, together with its interest in the Common Elements, shall constitute for all purposes a separate parcel of real property which shall be separately taxed and assessed.
- 10.09. Rule Against Perpetuities: In the event any provision of this Declaration, the Articles, the Bylaws, or the rules and regulations adopted or promulgated by the Association shall be found or declared unlawful, unenforceable, void, or voidable for violation of the rule against perpetuities, then such provision shall continue until twenty-one (21) years following the death of the last survivor of the now-living descendants of the President of the United States, George W. Bush, and Governor of the State of West Virginia, Robert Wise.
- 10.10. Headings: The headings, titles, and captions contained in this Declaration are inserted only as a matter of convenience and for reference purposes only and shall not in any way define, limit, extend, or prescribe the scope or intent of any provision of this Declaration.
- 10.11. Severability: If any provision, article, section, sentence, clause, phrase, or word of this Declaration, the Articles, or the Bylaws, or the application thereof, in any circumstance, is held invalid, unenforceable, or unconstitutional, the validity, enforceability, and constitutionality of the remainder of this Declaration, the Articles, and the Bylaws, and the application of such provision, article, section, sentence, clause, phrase, or word, in any other circumstance, shall not be affected thereby, and the remainder of this Declaration, the Articles, and the Bylaws shall remain in full force and effect and be construed and interpreted as if such invalid, unenforceable, or unconstitutional part was never included: The provisions of this Declaration, the Articles, and the Bylaws are declared to be severable.
- 10.12. Applicable Law: The laws of the State of West Virginia shall govern the validity of this Declaration, the construction of its terms, and the interpretation of the rights, powers, duties, and obligations of the parties upon whom this Declaration shall be binding.
- 10.13. Singular and Plural: Words used herein, regardless of the number and gender specifically used, shall be deemed and construed to include any other number, singular or plural, and any other gender, masculine, feminine, or neuter, as the context requires.
- 10.14. Failure to Enforce Not a Waiver of Rights: Any waiver or failure to enforce any provision of this Declaration in a particular situation shall not be deemed a waiver or abandonment of such provision as it may apply in any other situation or to the same or a similar situation at any other location within the Property or of any other provision of this Declaration. The failure of Declarant, Unit Owners, the Association, their successors and assigns, and any and all other Persons having an interest in the Property to enforce any provision of this Declaration shall in no event be deemed a waiver of the right to do so thereafter nor of the right to enforce any other provision.

- 10.15. Maximum Number of Units: The maximum number of Units that may be created is 99. The maximum number of Units that may be created per acre is five (5) for detached, single family Units. Multifamily, townhomes and condominium Units may exceed five (5) Units per acre.
- 10.16. Legal Description of Units: For the purposes of this Declaration, as well as those other circumstances where a legally sufficient description of a Unit is necessary or required, the legal description of each Unit shall be designated by the identifying number of such Unit as set forth and shown on the Plat.
- 10.17. Notice: Unless otherwise provided, any notice required or permitted to be given under the Act, this Declaration, the Articles, the Bylaws, or the rules and regulations adopted or promulgated by the Association shall be in writing, signed by the party giving such notice, and delivered in person or by certified United States mail, postage prepaid, return receipt requested, addressed as follows:
- (1) If to the Association, to the last known address of the then acting secretary of the Association.
  - (2) If to the Board, to the last known address of the then acting president of the Association.
  - (3) If to any Unit Owner, to the mailing address of such Unit Owner's respective Unit or to any other mailing address designated in writing.

It shall be the duty of each and every Unit Owner to notify the Association, in writing, of any change of address. Upon written request to the Association, the holder of any lien or security interest encumbering any Unit shall be given a copy of all notices required or permitted to be given under the Act, this Declaration, the Articles, the Bylaws, or the rules and regulations adopted or promulgated by the Association to the Unit Owner whose Unit is subject to such lien or security interest; provided, that such written request sets forth the address of such lienholder or secured party. In the event the address of any party entitled to notice is unknown to any party required or permitted to give such notice, notice shall be given and served by publication as a Class I legal advertisement as provided for in Article 3, Chapter 59 of the West Virginia Code, as amended from time to time. Unless expressly provided otherwise, for the purpose of giving or serving notice, the term "days" shall mean calendar days, including Sundays and all holidays.

**IN WITNESS WHEREOF**, The Summit at Cheat Lake, LLC, a West Virginia limited liability company, has caused this Declaration to be duly executed to be effective as of the date first above written, by authority duly given.

**The Summit at Cheat Lake, LLC,**  
a West Virginia limited liability company

By: Its Member

**Warden Ventures, LLC**  
a West Virginia limited liability company

By: [Signature]  
Douglas Warden, Member

and

By: Its Member

**Orian, LLC**  
a Maryland limited liability company

By: [Signature]  
Glenn T. Adrian, Member

STATE OF WEST VIRGINIA,  
COUNTY OF MONONGALIA, TO-WIT:

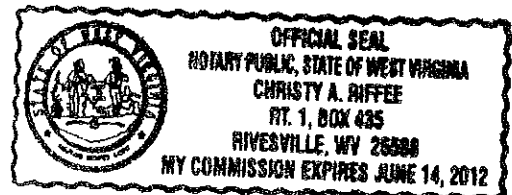
I, Christy A. Riffe, a notary public of said county, do certify that Douglas Warden, Member Warden Ventures, LLC, Member of The Summit At Cheat Lake, LLC, a West Virginia limited liability company, who signed the writing hereto annexed, bearing date as of the 9<sup>th</sup> day of October, 2008, has this day in my said county, before me, acknowledged the same to be the act and deed of said The Summit At Cheat Lake, LLC.

Given under my hand this 9<sup>th</sup> day of October, 2008.

My commission expires: June 14, 2012

Notary Public

(NOTARIAL SEAL)

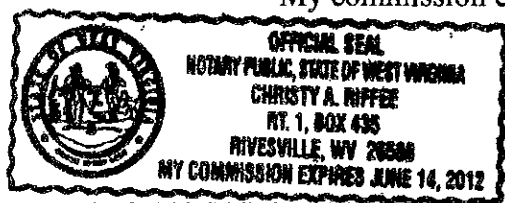


STATE OF WEST VIRGINIA,  
COUNTY OF MONONGALIA, TO-WIT:

I, Christy A. Riffe, a notary public of said county, do certify that Glenn T. Adrian, Member of Oriah, LLC, Member of The Summit at Cheat Lake, LLC, a West Virginia limited liability company, who signed the writing hereto annexed, bearing date as of the 9<sup>th</sup> day of October 9, 2008, has this day in my said county, before me, acknowledged the same to be the act and deed of said The Summit At Cheat Lake, LLC.

Given under my hand this 9 day of October, 2008.

My commission expires: June 14, 2012



(NOTARIAL SEAL)

Notary Public Christy A. Riffe

*This instrument was prepared by: Brian D. Gallagher, Esq., Steptoe & Johnson PLLC, United Center, 1085 Van Voorhis Road, Suite 400, P.O. Box 1616, Morgantown, WV 26507-1616*

**FIRST AMENDMENT TO**  
**THE SUMMIT AT CHEAT LAKE DECLARATION**

1376-446

This First Amendment to The Summit at Cheat Lake Declaration ("First Amendment") is made and entered into this 17<sup>th</sup> day of November, 2008, by **The Summit at Cheat Lake, LLC**, a West Virginia limited liability company, ("Declarant").

**RECITALS**

1. By The Summit at Cheat Lake Declaration dated October 3, 2008, of record in the office of the Clerk of the County Commission of Monongalia County, West Virginia, in Deed Book 1374, at Page 342 (the "Declaration"), Declarant created and established The Summit at Cheat Lake, a planned community (the "Community").
2. The outer boundary lines of the Community and the Unit boundary lines of Phase I of the Community (without metes and bounds descriptions) are shown on a plat of survey dated October 29, 2008, by Potesta & Associates, Inc., of record in said Clerk's Office in Map Cabinet 5, Envelope 49A (the "Original Plat").
3. The Declarant has recorded additional Plats of the Community showing the metes and bounds descriptions of the Units in Phase I of the Community and the metes and bounds description of Ridge At Summit Drive, which Plats are of record in said Clerk's Office in Map Cabinet 5, Envelope 49B, Map Cabinet, 5, Envelope 50A, and Map Cabinet 5, Envelope 50B, (collectively the "Phase I Plats").
4. Pursuant to Paragraph 6.01 of the Declaration, Declarant desires to amend the Declaration to include the Phase I Plats into the Declaration and to create and include Phase II of the Community, which shall consist of Units 42 to 89, inclusive, together with all related Common Elements, as shown on a Plat dated November 13, 2008, and of record in said Clerk's Office in Map Cabinet 5, Envelope 51A (the "Phase II Plat").
5. Declarant further desires to amend the Declaration by establishing setback restrictions for the Lots located within Phase II of the Community.

**NOW, THEREFORE, WITNESSETH:** That for and in consideration of Ten Dollars (\$10.00), cash in hand paid and other good and valuable consideration, the receipt of which is hereby acknowledged, Declarant hereby amends the Declaration as follows:

1. The Declaration shall be amended by incorporating the Phase I Plats of the Community into the terms and conditions of the Declaration. Phase I of the Community shall include Units 1-42, inclusive, together with related Common Elements as shown on the Original Plat, the Phase I Plats and described in the Declaration.

2. The Declaration shall be amended by incorporating the Phase II Plat of the Community into the terms and conditions of the Declaration. Phase II of the Community shall include Units 42-89, inclusive, together with all related Common Elements, as shown upon the Phase II Plat and described in the Declaration.

3. Paragraph numbered 7.09 shall be amended by adding the following paragraph to Section 7.09:

7.09(a) Set Back Restrictions-Phase II Lots: For Units 42 to 89, inclusive, Phase II, no building, structure or improvement of any kind shall be constructed, erected, or built, or in any manner located nearer than:

- a) 35 feet from Ridge of Summit Drive;
- b) 25 feet from all front and rear boundary lines; and
- c) 15 feet from all boundary lines that are not a front or rear boundary line and that adjoin another Unit.

These Amendments does not amend or modify any other terms of the Declaration. Unless expressly modified herein, all terms and conditions of the Declaration shall continue in full force and effect.

**IN WITNESS WHEREOF**, The Summit at Cheat Lake, LLC, a West Virginia limited liability company, has caused this First Amendment to be executed by Warden Ventures, LLC, its Member, and by Orian, LLC, its Member, by authority duly given, each as of the day first above written.

THE SUMMIT AT CHEAT LAKE, LLC,  
a West Virginia limited liability company

By: Its Member

Warden Ventures, LLC  
a West Virginia limited liability company

By: [Signature]  
Douglas Warden, Member

and

By: Its Member

Orian, LLC  
a Maryland limited liability company

By: [Signature]  
Glenn T. Adrian, Member

STATE OF WEST VIRGINIA,  
COUNTY OF MONONGALIA, TO-WIT:

I, Jasmine M. Shinn, a notary public of said county, do certify that Douglas Warden, Member Warden Ventures, LLC, Member of The Summit at Cheat Lake, LLC, a West Virginia limited liability company, who signed the writing hereto annexed, bearing date as of the 17<sup>th</sup> day of November, 2008, has this day in my said county, before me, acknowledged the same to be the act and deed of said The Summit at Cheat Lake, LLC.

Given under my hand this 17<sup>th</sup> day of November, 2008.

My commission expires: June 25, 2017

[Signature]  
Notary Public

(NOTARIAL SEAL)



Notary Public  
Jasmine M. Shinn  
Glenmark Holding LLC  
1405 Stewartown Rd  
Morgantown, WV 26505  
My commission expires June 25, 2017



STATE OF WEST VIRGINIA,

COUNTY OF MONONGALIA, TO-WIT:

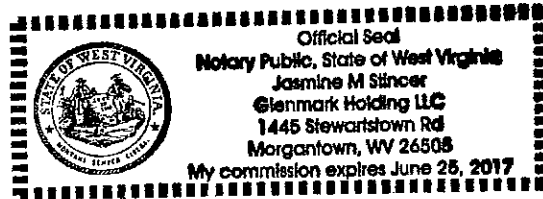
I, Jasmine M. Sincer, a notary public of said county, do certify that Glenn T. Adrian, Member Orian, LLC, Member of The Summit at Cheat Lake, LLC, a West Virginia limited liability company, who signed the writing hereto annexed, bearing date as of the 17th day of November, 2008, has this day in my said county, before me, acknowledged the same to be the act and deed of said The Summit at Cheat Lake, LLC.

Given under my hand this 17th day of November, 2008.

My commission expires: JUNE 25, 2017

Jasmine M. Sincer  
Notary Public

(NOTARIAL SEAL)



This First Amendment to The Summit at Cheat Lake Declaration was Prepared by: Brian D. Gallagher, Esq., Steptoe & Johnson PLLC, United Center, Suite 400, 1085 Van Voorhis Road, P. O. Box 1616, Morgantown, West Virginia, 26507-1616.